

the administrative remedy also must comport with due process. (*Bockover v. Perko* (1994) 28 Cal.App.4th 479, 486.) Petitioners have not alleged any facts showing that the administrative hearing offered by the City was inadequate or failed to comport with due process. Nor are there facts suggesting that the City had declared that it would not restore the Permit if Petitioners had timely requested a hearing. As such, they have not established that they were excused from the exhaustion requirement.

However, in addition to challenging the decision to deny restoration of the previously revoked Permit, which is more suited for an administrative mandate, Petitioners also appear to challenge the tobacco permit moratorium implemented by the City, which allegedly prevents Petitioners from applying for a new tobacco retail permit. (Pet., ¶¶ 9, 25.) As stated above, a petition for traditional mandamus may be used to challenge a quasi-legislative decision of a local agency. “Quasi-legislative acts involve the adoption of rules of general application on the basis of broad public policy, while quasi-judicial acts involve the determination and application of facts peculiar to an individual case.” (*Alborzi v. University of Southern California* (2020) 55 Cal. App. 5th 155, 169.) “The inquiry in a traditional mandamus proceeding, in which the trial court reviews quasi-legislative acts, is limited to whether the local agency’s action was arbitrary, capricious, or entirely without evidentiary support, and whether it failed to conform to procedures required by law.” (*California Public Records Research, Inc. v. County of Alameda* (2019) 37 Cal. App. 5th 800, 805.) If the agency’s action was legislative, its findings are reviewed in the trial court by the arbitrary and capricious standard, whereas either independent judgment or substantial evidence standards apply to quasi-judicial decision. (*California Aviation Council v. City of Ceres* (1992) 9 Cal. App. 4th 1384, 1393.)

Although the Petition is somewhat vague as to the terms, it appears that the moratorium is a generally applicable rule barring new tobacco permits within the City that applies to all new permit applications until September 2026. (Pet. ¶ 9.) Thus, the moratorium is a quasi-legislative act by the City. In its Demurrer, the City does not address the moratorium at all or make any argument that the moratorium is proper and conformed with required law. Accordingly, the Demurrer is overruled as to the second cause of action.¹

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CASE #	CASE NAME	HEARING NAME
CVRI2402073	BOLORIZADEH vs NATIONAL DEFAULT SERVICING CORPORATION	MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, REQUESTS FOR ADMISSION, AND REQUESTS FOR PRODUCTION OF DOCUMENTS, SET TWO

Tentative Ruling: Hearing continued to 9/9/2026

¹ To be sustained, a demurrer must dispose of an entire cause of action. (*PH II, Inc. v. Superior Court* (1995) 33 Cal. App. 4th 1680, 1682.) A demurrer will not lie as to only a portion of a cause of action. (*Poizner v. Fremont General Corp.* (2007) 148 Cal. App. 4th 97, 119.)